EXPLAINER

Clergy and religious in difficulty

A letter arrives: faculties withdrawn, a leave imposed, a request to resign, a warning from a superior. This page explains what each of those things is in law, what it is not, and what rights go with it.

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I write this for priests, deacons and religious, but I know that others read it: parishioners, superiors, and people who have made a complaint. The law here protects the person in difficulty and the community at the same time, and it is weakest exactly where both need it most: in the long middle of a process.

Measures that are not penalties

Most of what happens to clergy and religious in difficulty is not a penalty at all. That matters, because penalties can only be imposed for an offence, after a process, with a right of defence. Administrative measures can be taken for the good of souls without any finding of wrongdoing. The protections are different, and so is the remedy.

- **Faculties.** Preaching, hearing confessions and assisting at marriages are exercised by faculty, and faculties can be restricted or withdrawn. The faculty to hear confessions is the best protected: it may not be habitually revoked except for a grave cause. A withdrawal of faculties is a decree, and it can be the object of recourse. cc. 764, 974 §1, 1111
- **Removal from office.** An office conferred for an indefinite time may be taken away only for grave causes and by the procedure the law lays down; the decree must be in writing to take effect. A pastor can be removed only for the causes the law lists (conduct gravely harmful to communion, incapacity, loss of standing among sound parishioners, grave neglect persisting after warning, serious mismanagement) and only by the steps the law prescribes: consultation with two pastors from the standing group, an invitation to resign within fifteen days, a second invitation, the right to inspect the acts and reply in writing, then a reasoned decree. If you are removed from an office that supported you, provision must be made for a suitable period. cc. 192-195, 1740-1747
- **Transfer.** A pastor who is serving well may still be transferred for the good of souls. The bishop proposes it in writing; if the pastor objects, the reasons are weighed with two pastors; the removed or transferred pastor is to be provided for; and the salvation of souls and canonical equity are to be kept in view. cc. 1748-1752

- **"Administrative leave," "leave of absence," "step aside."** These are not canonical terms. Ask what the letter is. If an accusation has been received, it is usually a precautionary measure in a penal context (below). Otherwise it may be an informal arrangement, which you are free to accept or to ask be put on a lawful footing. "Loss of good standing" and the refusal of a *celebret* (the letter attesting that a priest may celebrate elsewhere) are likewise not penalties; a refusal is a decree you may question.

Precautionary measures

Once a penal process has begun, including the preliminary investigation, the ordinary may, to prevent scandal, protect witnesses or safeguard the course of justice, exclude the accused from ministry or from an office, impose or forbid residence in a place, or even prohibit public participation in the Eucharist. He must first hear the promoter of justice and cite the accused. The measures must be revoked when their reason ceases and lapse by law when the process ends. They are not penalties and imply no finding of guilt; in Canada and the United States they are now routine when an allegation is received. c. 1722

You have the right to be heard before a penalty is declared by decree, unless you were duly summoned and failed to appear. A decree issued without hearing you is not nothing; it stands until it is overturned, but the missing hearing is itself a ground for recourse. You are presumed innocent, you are not bound to confess, and you may not be put under oath about the accusation. cc. 1720 n. 1, 1321 §1, 1728 §2

Support

Clergy are owed remuneration suited to their condition and provision for illness and old age. A cleric who is penalized must still be left what is necessary for a decent livelihood, unless the penalty is dismissal from the clerical state; and even then the ordinary is to help a dismissed cleric in real need as best he can, short of giving him an office or ministry. These norms bind, but they do not say how much or for how long, and a cleric on a precautionary measure for several years is often living on the bishop's goodwill and a minimal stipend. This is one of the weak points of the law. cc. 281, 1350

Leaving the clerical state

Ordination, once valid, is never invalidated, but the clerical state can be lost in three ways: a judgment or decree declaring the ordination invalid; the penalty of dismissal, which under the 2021 Book VI is the gravest of the expiatory penalties; or a rescript of the Apostolic See, granted to deacons for grave causes and to priests for the most grave. Loss of the state does not of itself dispense from celibacy; that dispensation is the Pope's alone. A man who has lost the state loses its rights and obligations and may not exercise orders, except to absolve a person in danger of death. A priest who asks for dispensation himself petitions through his bishop to Rome; the process is confidential and slow, and the outcome is not guaranteed. cc. 290-293, 1336 §5, 976

Religious

The law for religious is more detailed, because leaving an institute means leaving a home as well as a work.

- **Exclaustration.** Time outside the community while remaining a member, granted by the supreme moderator with the council's consent for a grave cause, for a limited term (currently up to five years); longer terms are reserved to the Holy See or, for diocesan institutes, to the bishop. It can also be imposed for grave causes, with a right of defence. c. 686
- **Departure.** At the end of temporary vows a religious may simply leave. During them, an indult of departure can be granted for a grave cause. A perpetually professed religious may ask to leave only for the gravest reasons, weighed before God; the petition goes through the supreme moderator to the Holy See or, for a diocesan institute, to the bishop. Once granted and accepted, the indult dispenses from the vows and every obligation of profession. A cleric must first find a bishop who will receive him. cc. 688, 691-693
- **Dismissal.** Some acts dismiss by the law itself: notorious defection from the faith, marriage or attempted marriage, and twelve months of unlawful, untraceable absence. For other grave, external, imputable and proven causes (the canon lists examples) the superior must first collect the proofs and give a written warning with an explicit threat of dismissal; if it goes unheeded, a second warning after at least fifteen days; and only then, after a further fifteen days, send the acts to the supreme moderator, who decides with a council of at least four by secret ballot and issues a reasoned decree. Throughout, the member keeps the right to put a defence directly to the supreme moderator. The decree must state the right of recourse within thirty days, and the recourse suspends the dismissal. In grave scandal or imminent harm a member may be sent out of the house at once, but the process must then follow. cc. 694-703
- **What the departing are owed.** A religious who leaves or is dismissed has no claim to payment for work done in the institute. The institute is, however, bound to observe equity and gospel charity toward the person leaving. This is a real obligation, but a soft one, and what it means in practice varies widely between institutes. c. 702

Your rights in every process

- Your good name and privacy may not be unlawfully harmed, by the authority or by anyone else. c. 220
- In a penal trial you must be invited to appoint an advocate and one will be appointed for you if you do not; in recourse you may always use one. Read canonical crimes and administrative recourse. cc. 1723, 1738
- Against any decree you may ask its author in writing for revocation within ten useful days, then take recourse to the superior within fifteen. Against a decree declaring a penalty, recourse suspends the penalty. cc. 1734, 1737, 1353

- You remain a member of the faithful, with every right described in your rights in the Church.

In practice: get a copy of the decree, note the date you received it, and get advice before you reply or make any statement. If there is any possibility of civil proceedings, speak to a civil lawyer as well.

Where the law is weak

I would be misleading you if I ended there. The law gives little by way of timelines for a preliminary investigation or for Rome's review of a case, and a cleric can wait years under restriction with no decision either way. Support during that time depends heavily on the goodwill of the ordinary. Recourse against pastoral decisions, a transfer, a refused faculty, a leave, succeeds rarely, because the superior's discretion in those matters is wide and the reviewing authority is reluctant to substitute its judgment. None of this means you should not act; the deadlines are short, and the record you build now is the record Rome will read. It means acting with realistic expectations and with someone beside you who will keep the file moving. If you are the one who made the complaint, know that the same slowness burdens you, and that the rights described here are not obstacles to the truth but the conditions under which it can be found.

KEY CANONS

- **cc. 764, 974, 1111** Faculties and their withdrawal.
- **cc. 192-195** Removal from office; support.
- **cc. 1740-1752** Removal and transfer of pastors.
- **c. 1722** Precautionary measures.
- **cc. 281, 1350** Sustenance, even under penalty.
- **cc. 290-293** Loss of the clerical state.
- **c. 1336 §5** Dismissal as a penalty (2021 Book VI).
- **cc. 686-703** Exclaustration, departure, dismissal of religious.
- **c. 702** Equity and charity toward those who leave.
- **cc. 220, 1723, 1738, 1734ff.** Good name, advocate, recourse.

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